

26TRCV00452 26TRCV00452

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-08-07

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Case Number: 26TRCV00452 Hearing Date: August 7, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

LYNN COUCH

;

Plaintiff,

vs.

save medical & aesthetic
group

, et al.;

Defendants.

Case

No.:

26TRCV00452

Hearing

Date:

August
7, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT SANG LEE'S DEMURRER TO PLAINTIFF LYNN
COUCH'S FIRST AMENDED COMPLAINT

MOVING PARTY: Defendant, Sang Lee

RESPONDING PARTY: Plaintiff, Lynn Couch

(1)

Defendant

Sang Lee's Demurrer to Plaintiff Lynn Couch's First Amended Complaint is OVERRULED
pursuant to Code of Civil Procedure section 430.10.

The Court considers the moving
papers filed on June 3, 2026, the opposition brief filed on July 27, 2026, and
the reply brief filed on July 31, 2026.

BACKGROUND

Factual Background

On February 6, 2026, plaintiff
Lynn Couch ("Plaintiff") filed the Complaint against defendants Save Medical
& Aesthetic Group ("Save"), Jinah K. Choi, Sang S. Lee, and DOES 1 through 50.

On April 16, 2026, Plaintiff
filed the First Amended Complaint ("FAC") against Save, Jinah K. Choi, Sang S.
Lee, and DOES 1 through 50. The FAC

includes the following causes of action: (1) Medical Negligence; (2) Fraud – Concealment; and (3) Medical Battery.

On May 9, 2026, Lee's counsel sent a meet-and-confer letter to Plaintiff's counsel, requesting a conference to discuss the alleged issues in the FAC.

(Declaration of Inhyock Kim ("Kim Decl."), ¶¶ 3-4.) On May 13, 2026, Lee's counsel met and conferred with Plaintiff's counsel over the phone. (Kim Decl., ¶ 5.) Despite both parties articulating their positions during the conversation, they were unable to resolve the issues through informal discussion, necessitating the filing of this demurrer. (Kim Decl., ¶¶ 6-8.)

LEGAL STANDARD

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing that the defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

MEET AND CONFER REQUIREMENT

Before filing a demurrer, the moving party is required to meet and confer in person, by telephone, or via video conference with the party who filed the pleading that is subject to the motion, to determine whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., § 430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).) A determination by the court that the meet and confer process was inadequate shall not be grounds to overrule or sustain a demurrer. (Code Civil Proc., § 430.41, subd. (a)(4).)

On May 9, 2026, Lee's counsel sent a meet-and-confer letter to Plaintiff's counsel, requesting a conference to discuss the alleged issues in the FAC. (Kim Decl., ¶¶ 3-4.) On May 13, 2026, Lee's counsel met and conferred with Plaintiff's counsel over the phone. (Kim Decl., ¶ 5.) Despite both parties articulating their positions during the conversation, they were unable to resolve the issues through informal discussion, necessitating the filing of this demurrer. (Kim Decl., ¶¶ 6-8.)

Consequently, the Court finds that Lee sufficiently met and conferred with Plaintiff prior to filing this demurrer.

DISCUSSION

Second Cause of Action – Fraud – Concealment

Lee demurs to the second cause of action for fraud – concealment on several grounds: (1) Plaintiff “improperly relies on collective allegations against Choi and Lee without identifying [] Lee's specific conduct[;]” preventing Lee from receiving “fair notice of the specific fraudulent conduct allegedly attributable to him[;]” (2) Plaintiff “fails to plead specific facts showing [] Lee's knowledge[;]” (3) Plaintiff “fails to plead specific facts showing [] Lee's intent to deceive[;]” (4) Plaintiff “fails to plead reliance on any specific conduct by [] Lee[;]” and (5) the cause of action is uncertain as to Lee. (Dem.,

pp. 5:3-4, 6:23-24, 7:6, 22, 8:12, 9:3.)

"The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638 (Lazar), quoting 5 Witkin, Summary of Cal. Law (9th ed. 1988) Torts, § 676, p. 778.)

The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of "liberal construction" of the pleadings will not ordinarily be invoked. (Lazar, supra, 12 Cal.4th at p. 645.) In alleging a cause of action for fraud, "[t]he specificity requirement means a plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made, and, in the case of a corporate defendant, the plaintiff must allege the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the representation was made." (West v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 780, 793.)

However, "to prove reliance on an omission[, the plaintiff] need only prove that, had the omitted information been disclosed, [the plaintiff] would have been aware of it and behaved differently."

(Mirkin v. Wasserman (1993) 5 Cal.4th 1082, 1093.)

Plaintiff alleges the following: Choi "is the chief financial officer, agent, and director of [Save]. [Lee] is the chief executive officer and director of [Save]. [Choi and Lee] are nurse practitioners providing medical services at [Save,] located in Torrance, California." (FAC, ¶ 3.) "[O]n or about May 7, 2025, before and continuing thereafter, [P]laintiff presented to [Save] for cosmetic procedures, including body fat dissolving injections in her thighs. Among other negligent acts and omissions, defendants, and each of them, negligently performed the injections into plaintiff's thighs using improper equipment and technique, causing the injection needle to break off and became lodged in [P]laintiff's left thigh" (FAC, ¶ 9.)

Choi and Lee "intentionally failed to disclose to [P]laintiff the fact that the injection needle had broken off and was lodged in her left thigh during

the injections performed that same day.”

(FAC, ¶ 17.) “Plaintiff was

positioned on her stomach during the procedure and could not observe the injections being performed. Plaintiff

did not see the needle that was used either during or after the procedure and had no way to know that it had broken.”

(FAC, ¶ 17.) “On May 9, 2025,

defendants [Choi and Lee] asked [P]laintiff to return to [Save] without disclosing this material fact. Upon [P]laintiff’s

arrival on May 9, 2025, [Choi and Lee] asked [P]laintiff to sign a consent form and to backdate it to May 7, 2025. Defendants

then performed what they represented to be additional fat-dissolving injections in Plaintiff’s left thigh. Only after

completing this procedure did defendants inform [P]laintiff that the needle had broken off in her left thigh during the May 7, 2025 injections.” (FAC, ¶ 18.)

Plaintiff further claims: “Had

[P]laintiff known this material fact, she would have behaved differently. Specifically, [P]laintiff would have sought immediate medical evaluation and treatment on May 7, 2025, to have the needle

promptly located and removed by competent, qualified medical providers, before

any complications such as migration, infection, or other injuries developed. Plaintiff would not have simply gone home and continued her normal activities for 2 days without seeking medical attention. Further, [P]laintiff would not have returned

to [Save] on May 9, 2025, nor consented to any additional injections or

procedures performed by [Choi and Lee.]”

(FAC, ¶ 20.)

Moreover, Plaintiff alleges

that “[t]he injection needle migrated within [P]laintiff’s body and became

significantly more difficult to locate and remove. As it migrated, the needle became very painful, uncomfortable and disturbing to [P]laintiff, causing her severe pain,

suffering, emotional distress, anxiety, stress, despair, mental anguish,

inconvenience, and other injuries to her body, nervous system, and overall health. As a further direct and

proximate result of defendants’ intentional fraudulent conduct, [P]laintiff was required to undergo multiple surgical procedures to locate and remove the

migrated needle, suffering infection, prolonged recovery, multiple incisions and their corresponding scars, and other related sequelae.” (FAC, ¶ 21.)

Plaintiff’s alleged injuries include “shock and injury to [P]laintiff’s

nervous system and person, all of which has caused and continues to cause [P]laintiff

great mental, emotional, physical and nervous pain, suffering, anguish, fear,

anxiety, and distress.” (FAC, ¶ 22.)

Lee contends that Plaintiff's claim is deficient because she fails to plead specific facts that distinguish the actions of Choi from those of Lee. (Dem., p. 5:6-7.) He further grounds the remainder of his arguments on this premise. (Dem., pp. 6:23-9:12.)

Nonetheless, the Court finds these arguments to be unpersuasive. There is no obligation for Plaintiff to distinguish Choi's allegedly wrongful actions from Lee's own, particularly given that Plaintiff alleges both Lee and Choi engaged in such conduct. Moreover, the Plaintiff's decision not to differentiate does not render the allegations conclusory. Furthermore, Lee has not cited any applicable case law or statutes that impose such a requirement on Plaintiff. It is apparent that Plaintiff attributes the actions to both parties, thereby providing Lee with adequate notice regarding the conduct attributed to him and ensuring that the claim remains sufficiently clear. As such, Lee's demurrer with respect to the second cause of action for fraud – concealment is **OVERRULED**.

Third Cause of Action – Medical Battery

Lee demurs to the third cause of action for medical battery on several grounds: (1) Plaintiff “fails to allege what procedure [] Lee personally performed[;]” (2) Plaintiff “fails to distinguish medical battery from medical negligence as to [] Lee[;]” (3) Plaintiff “fails to plead facts showing [] Lee personally exceeded the scope of consent[;]” and (4) the claim is uncertain. (Dem., pp. 10:23, 11:11-12, 26-27, 12:14.) The Court disagrees.

“A battery is a violation of an individual's interest in freedom from intentional unlawful, harmful or offensive unconsented contacts with his or her person. [Citation.] The element of lack of consent to the particular contact is an essential element of battery. [Citation.]” (Rains v. Superior Court (1984) 150 Cal.App.3d 933, 938, internal citations omitted.)

“Where a doctor obtains consent of the patient to perform one type of treatment and subsequently

performs a substantially different treatment for which consent was not obtained, there is a clear case of battery.” (Cobbs v. Grant (1972) 8 Cal.3d 229, 239.) “The battery theory should be reserved for those circumstances when a doctor performs an operation to which the patient has not consented. When the patient gives permission to perform one type of treatment and the doctor performs another, the requisite element of deliberate intent to deviate from the consent given is present. However, when the patient consents to certain treatment and the doctor performs that treatment but an undisclosed inherent complication with a low probability occurs, no intentional deviation from the consent given appears; rather, the doctor in obtaining consent may have failed to meet his due care duty to disclose pertinent information. In that situation the action should be pleaded in negligence.” (Id. at pp. 240-241.)

Plaintiff alleges: “On May 9, 2025, [P]laintiff was told by defendants [Choi and Lee] that they were going to perform additional fat-dissolving injections in her thighs. Unaware of the broken needle lodged in her left thigh since May 7, 2025, [P]laintiff consented to the additional injections. On information and belief, the purported additional injections were a pretext for defendants [Choi and Lee] to go re-enter [P]laintiff’s left thigh and search for the broken needle without having to first inform [P]laintiff of its presence, and to subsequently document the incident in the medical records as though it occurred on May 9, 2025, rather than 2 days earlier on May 7, 2025. Accordingly, defendants [Choi and Lee] performed a substantially different medical procedure than that which plaintiff consented to – namely, an exploratory attempt to locate a retained foreign object rather than the administration of additional fat-dissolving injections – by deceiving [P]laintiff regarding the true reason for and nature of the medical procedure performed on her left thigh on May 9, 2025.” (FAC, ¶ 26.)

Lee asserts that there are no specific allegations detailing his personal conduct, including the procedures he personally performed or whether he administered any injections. (Dem., p. 11:1-3.) The Court disagrees. As indicated, Plaintiff alleges that although she consented to additional injections, Lee and Choi conducted an entirely different procedure, an exploratory surgery or procedure aimed at removing the broken needle, instead of receiving the fat-dissolving injections. (FAC, ¶ 26.) Plaintiff specifically alleges Lee’s personal involvement in this

alternative procedure. The Court deems this sufficient at the demurrer stage.

Furthermore, Lee argues that this situation constitutes a negligence claim rather than a claim of medical battery, asserting that the claim does not demonstrate “an unauthorized procedure or substantially different procedure attributable to Defendant Lee personally.” (Dem., p. 11:19-20.)

However, as previously discussed, Plaintiff maintains that she did not receive the injections but rather underwent an exploratory procedure performed by Lee and Choi. (FAC, ¶ 26.) Based on these allegations, the exploratory procedure did not fall within the scope of the procedure to which Plaintiff consented; it constituted a distinct procedure to which she did not provide consent.

Additionally, Lee asserts that “the FAC does not allege facts showing how [] Lee personally exceeded the scope of that consent.” (Dem., p. 12:1-2.) The Court disagrees with this assertion. Plaintiff alleges that she consented to additional injections while Lee and Choi carried out an entirely different procedure. (FAC, ¶ 26.) As Plaintiff did not receive the injections and Lee did not perform an undisclosed inherent complication but rather an exploratory procedure, the Court finds that Plaintiff has adequately alleged that Lee exceeded the boundaries of her consent. (FAC, ¶ 26.) It is unnecessary for Plaintiff to specifically identify the name of the type of procedure, the precise manner in which Lee touched her, or to demonstrate that Lee obtained her consent personally.

In the reply brief, Lee similarly argues that Plaintiff must include much more specific allegations to survive this demurrer. (Reply, pp. 4:10-5:3.) However, these allegations are not required elements within the context of a medical battery claim, and Lee does not provide any relevant case law to support his position.

Lastly, Lee claims that the assertion is uncertain for the same reasons he believes the second cause of action is uncertain, namely that Plaintiff fails to articulate specific facts that distinguish the actions of Choi from those of Lee. (Dem., p. 12:14-28.)

However, as discussed above
with respect to the second cause of action, the Court disagrees. Plaintiff clearly attributes the actions to
both parties, thereby providing Lee with adequate notice regarding the conduct
attributed to him and ensuring that the claim remains sufficiently clear. As
such, Lee's demurrer with respect to the third cause of action for medical
battery is OVERRULED.

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ORDERS

1) Defendant

Sang Lee's Demurrer to Plaintiff Lynn Couch's First Amended Complaint is
OVERRULED.

2) Lee

is ordered to provide notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 7, 2026

Tamara

Hall

Judge

of the Superior Court